

26PSCV00389 26PSCV00389

County: los-angeles

Division: Civil Law and Motion

Department: 6

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Case Number: 26PSCV00389 Hearing Date: August 17, 2026 Dept: 6

Plaintiff

Axel Gustavo Magana Coss' Request for Entry of Default Judgment

Defendants: Brandon Ray Reed and Karina Reed Ballesteros

TENTATIVE RULING

Plaintiff's

request for entry of default judgment is DENIED. The Court will discuss with Plaintiff at the hearing whether Plaintiff intends to amend the Complaint to resolve the pleading defects identified herein.

BACKGROUND

This

is a breach of contract case. February 3, 2026, plaintiff Axel Gustavo Magana Coss (Plaintiff) filed this action against defendants Brandon Ray Reed, Karina Reed Ballesteros (collectively, Defendants), and Does 1 to 10, alleging the sole cause of action for breach of contract.

On June 2, 2026,
default was entered against Defendants.

On June 22, 2026,
Plaintiff requested entry of default judgment against Defendants.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendants in the total amount of \$40,433.32, including \$40,000.00 in damages and \$433.32 in costs. The Court finds some problems with Plaintiff's default judgment request that prevents the Court from entering default judgment against Defendants at this time. First, the Complaint does not allege sufficient facts to support Plaintiff's breach of contract claim. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186 ["To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff. [Citation]"]; see *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 281-282 [default admits only the well pleaded allegations in the complaint and a cause of action cannot stand against the defaulted defendant if it is not properly pleaded].) While the Complaint contains certain background allegations and attaches a copy of the contract, it does not allege all of the facts necessary to support Plaintiff's claim, such as when or how Defendants breached the contract. (See Compl., ¶¶ 1-10, Ex. A.) Paragraph 8 of the Complaint states that Plaintiff attached a cause of action for breach of contract, but the only thing Plaintiff attached was a copy of the contract. (Compl., ¶ 8, Ex. A.) In essence, all the Complaint alleges is that there was a contract between the parties, which is insufficient to state a cause of action for breach of contract. (See *Richman v. Hartley*, supra, 224 Cal.App.4th at p. 1186.) Also, the fact Plaintiff's declaration submitted in

support of the default judgment provides some of these missing facts does not solve the problem with the Complaint. (See generally, Coss Decl.; see Grappo v. McMills (2017) 11 Cal.App.5th 996, 1015 ["If the complaint does not state a cause of action or the allegations do not support a claim for relief, a default judgment is erroneous and 'cannot stand.' [Citation]".]) The only way Plaintiff can fix these pleading defects is to amend the Complaint and serve the amended pleading on Defendants.

Second, Plaintiff

provides conflicting cost calculations. Plaintiff's Memorandum of Costs on Form CIV-100 states a total of \$431.75, but Plaintiff's damages summary indicates \$433.32. (CIV-100, ¶ 7; Damages Summary, p. 1.) Also, the \$1.56 in postage is not a recoverable cost. (Code Civ. Proc., § 1033.5, subd. (b)(3).)

Third,

since this appears to be a personal debt, Plaintiff also should have completed paragraph 7 on Form JUD-100. (JUD-100, ¶ 7.)

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is DENIED. The Court will discuss with Plaintiff at the hearing whether Plaintiff intends to amend the Complaint to resolve the pleading defects identified herein.